

AI CREATES AI INC.**SIMPLE AGREEMENT FOR FUTURE TOKENS***(Private Placement SAFT)*

FLORIDA C-CORPORATION

Confidential - Subject to Securities Counsel Review

TRANSACTION SUMMARY	
Date of Agreement	[], 2026
Investor Name	[]
Investor Type	[Individual / Entity]
Purchase Amount	\$[]
Token Name	AICA Token
Token Symbol	[]
Price Per Token / Discount Formula	[]
Expected Token Generation Event	Not earlier than [], subject to platform readiness, legal compliance, and Company approval.

DRAFT FOR COUNSEL REVIEW - NOT FOR PUBLIC DISTRIBUTION

IMPORTANT SECURITIES LAW NOTICE

NO REGISTRATION. THIS AGREEMENT HAS NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, THE FLORIDA SECURITIES AND INVESTOR PROTECTION ACT, CHAPTER 517, FLORIDA STATUTES, OR THE SECURITIES LAWS OF ANY OTHER STATE OR JURISDICTION.

PRIVATE PLACEMENT ONLY. THIS AGREEMENT IS BEING OFFERED AND SOLD ONLY IN A PRIVATE PLACEMENT TO ELIGIBLE INVESTORS PURSUANT TO AN AVAILABLE EXEMPTION FROM REGISTRATION, INCLUDING, AS APPLICABLE, RULE 506 OF REGULATION D, REGULATION S, AND/OR APPLICABLE STATE SECURITIES LAW EXEMPTIONS.

TOKEN UTILITY. THE TOKENS, IF AND WHEN ISSUED, ARE INTENDED TO FUNCTION AS CONSUMPTIVE UTILITY TOKENS FOR ACCESS TO THE COMPANY'S AI PLATFORM, COMPUTE INFRASTRUCTURE, AI AGENTS, SOFTWARE TOOLS, AUTOMATION SYSTEMS, BUSINESS-BUILDING SERVICES, API ACCESS, AND RELATED DIGITAL SERVICES.

NO COMPANY RIGHTS. THE TOKENS DO NOT REPRESENT EQUITY, DEBT, PROFIT-SHARING RIGHTS, DIVIDENDS, REVENUE SHARE, VOTING RIGHTS, MANAGEMENT RIGHTS, OWNERSHIP RIGHTS, OR ANY CLAIM ON THE ASSETS OR BUSINESS OF THE COMPANY.

RISK OF LOSS. INVESTMENT IN THIS AGREEMENT INVOLVES A HIGH DEGREE OF RISK. THE COMPANY IS AN EARLY-STAGE TECHNOLOGY COMPANY. THE PLATFORM MAY NEVER BE COMPLETED. THE TOKENS MAY NEVER BE ISSUED. THE TOKENS MAY HAVE NO MARKET VALUE. THE INVESTOR MAY LOSE THE ENTIRE PURCHASE AMOUNT.

COUNSEL REVIEW REQUIRED. THIS WORKING DRAFT SHOULD BE REVIEWED, CUSTOMIZED, AND APPROVED BY QUALIFIED SECURITIES COUNSEL BEFORE USE. NO INVESTOR FUNDS SHOULD BE ACCEPTED UNTIL THE COMPANY CONFIRMS THE APPLICABLE FEDERAL AND STATE EXEMPTION PATH, NOTICE FILINGS, INVESTOR ELIGIBILITY, KYC/AML PROCEDURES, AND TOKEN DELIVERY CONDITIONS.

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SIMPLE AGREEMENT FOR FUTURE TOKENS

This Simple Agreement for Future Tokens, including all schedules and exhibits attached hereto, this “Agreement” or “SAFT,” is entered into as of the date set forth above by and between AI Creates AI Inc., a Florida C-Corporation registered with the Florida Department of State, Division of Corporations, with its principal business address at [Company Address], EIN [____], the “Company,” and [Investor Name], located at [Investor Address], the “Investor.”

The Company and the Investor may each be referred to as a “Party” and together as the “Parties.”

RECITALS

WHEREAS, the Company is developing an artificial intelligence platform and operating system currently known as AI Creates AI, including internal and customer-facing AI systems, automation tools, AI agents, software services, compute infrastructure, business-building tools, and related technology products;

WHEREAS, the Company intends to use proceeds from this private financing to fund platform development, server and compute infrastructure, AI model hosting, software engineering, legal and regulatory compliance, business operations, product deployment, and related legitimate corporate purposes;

WHEREAS, the Company intends, subject to applicable law, technological feasibility, business judgment, regulatory review, and platform readiness, to create and issue digital tokens that are intended to provide consumptive utility within the Company’s platform or ecosystem;

WHEREAS, the Investor desires to purchase from the Company a contractual right to receive future Tokens, if and when such Tokens are created, issued, and made available by the Company, subject to the terms and conditions of this Agreement;

WHEREAS, the Company and the Investor acknowledge that this Agreement may constitute a security under applicable federal and state securities laws and is being offered and sold only pursuant to an available exemption from registration;

WHEREAS, the Tokens, if and when issued, are intended to function as utility tokens for access to the Company’s platform and services and are not intended to represent ownership, equity, debt, profit-sharing rights, dividends, revenue share, governance rights in the Company, or any claim against the Company’s assets.

NOW, THEREFORE, in consideration of the mutual promises, covenants, representations, warranties, and agreements contained herein, and for other good and valuable consideration, the Parties agree as follows:

1. DEFINITIONS

1.1 Affiliate

Means, with respect to any person or entity, any other person or entity that directly or indirectly controls, is controlled by, or is under common control with such person or entity.

1.2 Agreement or SAFT

Means this Simple Agreement for Future Tokens, including all exhibits, schedules, supplements, amendments, investor questionnaires, subscription documents, and risk disclosures provided in connection herewith.

1.3 Applicable Law

Means all applicable federal, state, local, foreign, and international laws, rules, regulations, orders, directives, judgments, policies, and regulatory guidance, including securities laws, tax laws, anti-money laundering laws, sanctions laws, money transmission laws, consumer protection laws, and data privacy laws.

1.4 Company Platform or Platform

Means the software, infrastructure, services, AI tools, compute resources, AI agents, automation workflows, business-building tools, APIs, dashboards, applications, and related technology products developed, operated, licensed, or made available by the Company or its Affiliates.

1.5 Consumptive Use

Means use of Tokens to access, pay for, unlock, consume, or interact with products, services, features, tools, compute resources, AI agents, platform credits, subscription tiers, APIs, or other functionality within the Company Platform, and not for purposes of investment, speculation, profit, resale, passive income, dividends, or financial return.

1.6 Disqualification Event

Means any event, circumstance, regulatory determination, legal prohibition, bad actor disqualification, sanctions issue, AML issue, or other condition that, in the Company's reasonable judgment or counsel's advice, prevents or materially restricts the lawful sale of this Agreement, acceptance of funds, issuance of Tokens, or delivery of Tokens to the Investor.

1.7 Investor

Means the individual or entity identified above who enters into this Agreement and purchases the contractual right to receive future Tokens, subject to this Agreement.

1.8 KYC/AML Requirements

Means the Company's identity verification, anti-money laundering, sanctions screening, accredited-investor verification, source-of-funds verification, beneficial ownership review, and related compliance procedures.

1.9 Launch

Means the Company's determination, in its sole but good-faith business judgment, that the Platform has achieved sufficient functionality, technical readiness, compliance readiness, and operational capability to support Token utility.

1.10 Purchase Amount

Means the amount paid by the Investor to the Company in exchange for this Agreement, as stated on the signature page or subscription schedule.

1.11 Restricted Period

Means any legally required, contractually imposed, or Company-imposed period during which the Agreement or Tokens may not be transferred, sold, assigned, pledged, hypothecated, exchanged, or otherwise disposed of.

1.12 Securities Act

Means the U.S. Securities Act of 1933, as amended, and the rules and regulations promulgated thereunder.

1.13 Token or Tokens

Means the digital tokens that the Company may create and issue in the future, intended to provide Consumptive Use within the Company Platform, subject to all terms, conditions, limitations, restrictions, and functionality determined by the Company.

1.14 Token Delivery Date

Means the date or dates, after the Token Generation Event and satisfaction of all conditions in this Agreement, on which the Company delivers Tokens to the Investor.

1.15 Token Generation Event or TGE

Means the first date on which the Company creates, mints, issues, or otherwise makes Tokens available for distribution, use, or allocation, as determined by the Company in its sole but good-faith business judgment.

1.16 Token Network

Means any blockchain, distributed ledger, smart contract system, internal ledger, platform accounting system, or other technical architecture through which Tokens are issued, tracked, delivered, used, or transferred.

2. PURCHASE AND SALE OF FUTURE TOKENS

2.1 Purchase of Contractual Right

Subject to the terms and conditions of this Agreement, the Investor hereby agrees to purchase from the Company, and the Company hereby agrees to sell to the Investor, a contractual right to receive Tokens in the future, if and when such Tokens are created, issued, and made available by the Company.

2.2 No Present Token Issuance

The Investor acknowledges and agrees that the Investor is not purchasing Tokens on the date of this Agreement. The Investor is purchasing a contractual right to receive future Tokens, subject to the occurrence of a Token Generation Event and satisfaction of all conditions set forth herein.

2.3 Purchase Amount

The Investor shall pay the Company the Purchase Amount set forth on the signature page or subscription schedule. Payment shall be made only by wire transfer, ACH, check, stablecoin, digital asset, or other method approved in writing by the Company and subject to KYC/AML Requirements.

2.4 Number of Tokens

The number of Tokens deliverable to the Investor shall be calculated according to the Token Allocation Formula set forth in the Subscription Schedule. The Parties acknowledge that final Token supply, economics, functionality, and delivery mechanics may be modified by the Company before the Token Generation Event to comply with Applicable Law, platform functionality, regulatory advice, technical requirements, market conditions, and business judgment.

2.5 No Guarantee of Token Generation Event

The Investor acknowledges and agrees that there is no guarantee that a Token Generation Event will occur, that Tokens will be issued, that Tokens will be functional, that Tokens will have market value, or that the Platform will be completed.

2.6 Use of Proceeds

The Company may use the Purchase Amount and other proceeds from this offering for any lawful corporate purpose, including servers, GPUs, cloud infrastructure, AI compute resources, model hosting, software development, legal and regulatory costs, compliance, operations, sales, permitted marketing, hiring, contractors, vendors, product deployment, working capital, and launch and management of the Token ecosystem. The Company shall not be required to escrow, segregate, or restrict the Purchase Amount unless expressly stated in a separate written escrow agreement signed by the Company.

3. TOKEN UTILITY AND LIMITATIONS

3.1 Intended Utility

The Tokens, if and when issued, are intended to provide Consumptive Use within the Platform, including potential access to or payment for AI compute credits, AI agent creation, LLM/API access, automation workflows, business-building tools, premium Adam, Eve, Jarvis, or AI Creates AI features, software modules, storage, rendering, inference, marketplace fees, service credits, subscription credits, usage credits, and future products approved by the Company.

3.2 No Equity, Debt, or Profit Rights

The Tokens shall not represent or confer any equity, stock, membership interest, partnership interest, ownership interest, debt, note, bond, repayment obligation, creditor relationship, dividend, yield, royalty, revenue share, profit share, liquidation preference, distribution right, voting right, board right, consent right, observer right, management

right, inspection right, information right, governance right, claim against Company assets, or right to participate in Company operations.

3.3 No Promise of Market Value

The Company makes no representation, warranty, covenant, or promise that the Tokens will have any monetary value, market price, liquidity, secondary market, exchange listing, resale opportunity, appreciation, or investment return.

3.4 No Exchange Listing Commitment

The Company is not obligated to list, seek listing, support trading, create liquidity, maintain liquidity, support market-making, or enable resale of Tokens on any exchange, decentralized exchange, trading platform, broker, dealer, marketplace, or other venue.

3.5 Platform Functionality May Change

The Investor acknowledges that the Platform and Token functionality are under development and may change materially. The Company may modify, suspend, discontinue, replace, upgrade, restrict, or expand Token functionality in its sole but good-faith business judgment, subject to Applicable Law.

3.6 Compliance-Based Restrictions

The Company may restrict, delay, suspend, freeze, cancel, revoke, burn, lock, or refuse to deliver Tokens if the Company determines, in good faith, that such action is required or advisable under Applicable Law, KYC/AML Requirements, sanctions laws, securities laws, tax laws, money transmission laws, court orders, regulatory guidance, or counsel's advice.

4. TOKEN DELIVERY

4.1 Conditions to Delivery

The Company's obligation to deliver Tokens is conditioned upon completion of a Token Generation Event; sufficient Platform functionality; legal and commercial reasonableness; satisfaction of all KYC/AML Requirements; provision of a valid wallet or other delivery information; Investor compliance with this Agreement; no violation of Applicable Law; and absence of any Disqualification Event.

4.2 Delivery Mechanics

Subject to Section 4.1, the Company shall deliver Tokens by transfer to the Investor's approved wallet address, account, platform wallet, custodial account, internal ledger, or other mechanism designated by the Company.

4.3 Investor Wallet Responsibility

The Investor is solely responsible for providing a correct wallet address or other delivery information. The Company shall not be liable for Tokens delivered to an incorrect, inaccessible, incompatible, compromised, or insecure wallet address provided by the Investor.

4.4 Vesting and Lockup

Unless otherwise stated in a signed schedule, the default schedule shall be: 25% of Tokens vest on the Token Delivery Date, and the remaining 75% vest in equal monthly installments over 24 months. The Company may also require a one-year lockup, milestone-based vesting, transfer restrictions, smart-contract controls, or compliance restrictions.

4.5 Restricted Tokens

Any Tokens delivered pursuant to this Agreement may be restricted securities, restricted digital assets, restricted contract rights, or otherwise subject to transfer restrictions under Applicable Law. The Company may implement smart-contract restrictions, wallet restrictions, contractual transfer restrictions, legends, compliance controls, whitelist requirements, or other mechanisms.

4.6 Failure or Delay of Token Generation Event

If the Token Generation Event does not occur by [_____], the Company may extend the development timeline, modify the Token structure, issue alternative utility credits or platform credits, refund all or a portion of the Purchase Amount, terminate this Agreement, or take any other action approved by the Company's board and permitted by Applicable Law. Unless expressly stated in a signed rider, the Investor has no automatic right to a refund solely because the Token Generation Event is delayed, provided that the Company continues to act in good faith.

5. SECURITIES LAW COMPLIANCE

5.1 Private Placement

This Agreement is being offered and sold in a private placement pursuant to an available exemption from registration under the Securities Act and applicable state securities laws.

5.2 No General Solicitation Unless Permitted

Unless the Company affirmatively elects to conduct the offering under an exemption that permits general solicitation, the offering shall not be made by public advertising, public social media promotion, mass marketing, public website solicitation, public token sale, public conference pitch, general broadcast, or other general solicitation.

5.3 Accredited Investor Requirement

Unless the Company approves a separate lawful exemption in writing, the Investor must be an accredited investor as defined in Rule 501(a) of Regulation D under the Securities Act or a non-U.S. person purchasing in an offshore transaction pursuant to Regulation S.

5.4 Investor Eligibility

The Investor represents that the Investor is eligible to purchase this Agreement under Applicable Law and that the Investor has completed or will complete all questionnaires, subscription documents, KYC/AML checks, and accreditation verification requested by the Company.

5.5 No Public Offering

The Investor acknowledges that this Agreement has not been offered to the public and is not part of a public offering.

5.6 Transfer Restrictions

The Investor may not transfer, sell, assign, pledge, hypothecate, encumber, or otherwise dispose of this Agreement or any rights hereunder without the Company's prior written consent and only pursuant to registration or a valid exemption under Applicable Law.

5.7 Bad Actor and Disqualification Compliance

The Investor represents that the Investor is not subject to any disqualification, sanctions designation, criminal restriction, regulatory bar, court order, or other condition that would make the offering unavailable or unlawful.

5.8 Florida Securities Compliance

If the Investor is a Florida resident or the offer or sale is deemed to occur in Florida, the Investor acknowledges that the offering is intended to be conducted pursuant to an available exemption from registration under Chapter 517, Florida Statutes, and remains subject to Florida anti-fraud provisions and all applicable investor protection laws.

5.9 No Waiver of Securities Laws

Nothing in this Agreement waives, limits, or disclaims any non-waivable rights under applicable federal or state securities laws. The Investor acknowledges, however, that the Investor is not receiving equity, ownership, debt, profit-sharing rights, or management rights in the Company.

6. COMPANY REPRESENTATIONS AND WARRANTIES

Organization

The Company is duly incorporated, validly existing, and in good standing under the laws of the State of Florida.

Authority and Authorization

The Company has corporate power and authority to execute, deliver, and perform this Agreement, and the execution, delivery, and performance have been duly authorized by all necessary corporate action.

Binding Obligation

This Agreement, when executed by the Company and the Investor, constitutes a valid and binding obligation of the Company, enforceable in accordance with its terms, subject to bankruptcy, insolvency, reorganization, moratorium, similar laws affecting creditors' rights, and principles of equity.

No Conflict

The execution and performance of this Agreement do not, to the Company's knowledge, materially violate the Company's governing documents, any material contract binding on the Company, or Applicable Law.

Intellectual Property

To the Company's knowledge, the Company owns, licenses, or has access to intellectual property rights reasonably necessary to conduct its current business and proposed Platform development, subject to ordinary-course third-party software, open-source software, APIs, cloud services, model providers, and vendor agreements.

No Token Guarantee

The Company does not represent or warrant that the Token Generation Event will occur, that the Platform will be completed, that Tokens will be delivered by any specific date, that Tokens will have value, or that Tokens will be tradable.

Regulatory Uncertainty

Regulation of digital assets, tokens, AI infrastructure, and related technologies is evolving and uncertain. The Company may modify or delay Token issuance, Token utility, or Platform structure in response to legal, regulatory, tax, compliance, or business considerations.

7. INVESTOR REPRESENTATIONS AND WARRANTIES

Authority and Capacity

The Investor has full legal capacity, power, and authority to execute, deliver, and perform this Agreement. If an entity, the Investor is duly organized, validly existing, and in good standing under its jurisdiction of formation.

Accredited Investor or Eligible Non-U.S. Person

The Investor is either an accredited investor under Rule 501(a), a non-U.S. person purchasing in an offshore transaction pursuant to Regulation S, or otherwise eligible under a written exemption approved by the Company and its counsel.

Investment Intent

The Investor is acquiring this Agreement for its own account and not with a view to resale, distribution, fractionalization, syndication, or other transfer in violation of Applicable Law.

No Public Solicitation

The Investor was not offered this Agreement through public advertising, public social media, public website solicitation, mass email, broadcast, public seminar, or other general solicitation, unless the Company has elected an exemption that permits such solicitation.

Sophistication and Ability to Bear Loss

The Investor has sufficient knowledge and experience to evaluate the merits and risks and can bear the complete loss of the Purchase Amount without materially impairing the Investor's financial condition.

No Reliance on Company for Advice

The Investor has consulted, or had the opportunity to consult, legal, tax, accounting, financial, investment, and technical advisors and is not relying on the Company for legal, tax, investment, or financial advice.

Risk Acknowledgment

The Investor understands that the Company is early-stage, the Platform may fail, Tokens may never be issued, and the Investor may lose the entire Purchase Amount.

No Profit Expectation From Company Efforts

The Investor acknowledges that Tokens are intended for Consumptive Use and that the Investor is not purchasing based on any promise or expectation that Tokens will appreciate, be listed, generate profit, provide passive income, or create returns from the managerial efforts of the Company or others.

No Ownership Rights

The Investor understands and agrees that this Agreement and Tokens do not provide equity, debt, ownership, dividends, profit share, revenue share, voting rights, board rights, management rights, inspection rights, or any claim on Company assets.

KYC/AML; Source of Funds; Sanctions

The Investor shall provide all information requested by the Company for compliance purposes. The Purchase Amount is not derived from unlawful activity, and the Investor is not subject to sanctions or located in a prohibited jurisdiction.

Tax and Wallet Responsibility

The Investor is solely responsible for taxes and for securing digital wallets, private keys, seed phrases, passwords, accounts, devices, and credentials.

Accuracy of Information

All information provided by the Investor is true, complete, and accurate in all material respects, and the Investor shall promptly notify the Company of any material change.

8. KYC, AML, SANCTIONS, AND COMPLIANCE RIGHTS

Verification Rights

The Company may request, review, retain, and verify identity, accreditation, source of funds, beneficial ownership, tax status, jurisdiction, sanctions status, and transaction history.

Third-Party Providers

The Company may use third-party providers to conduct KYC, AML, sanctions, accreditation, wallet screening, blockchain analytics, tax reporting, investor onboarding, and compliance checks.

Refusal or Termination

The Company may refuse funds, reject an Investor, delay closing, delay Token delivery, terminate this Agreement, or refuse to deliver Tokens if the Investor fails compliance checks or if the relationship creates legal, regulatory, reputational, banking, sanctions, tax, or compliance risk.

Return of Funds

If the Company rejects the Investor before accepting the Purchase Amount, the Company shall return the Purchase Amount less transaction costs, banking fees, blockchain fees, compliance costs, or unrecoverable costs. If termination results from Investor breach, false representation, sanctions issue, illegal source of funds, or compliance failure, refund rights shall be determined in accordance with Applicable Law.

9. TRANSFER RESTRICTIONS

No Transfer of SAFT

The Investor may not transfer, assign, pledge, hypothecate, sell, or otherwise dispose of this Agreement or any rights hereunder without the prior written consent of the Company, which may be withheld in the Company's sole discretion.

Token Transfer Restrictions

Tokens, if delivered, may be subject to lockups, smart-contract restrictions, whitelist restrictions, legends, compliance approvals, jurisdictional restrictions, and restrictions required by securities laws.

No Resale Without Compliance

The Investor may not resell or transfer this Agreement or any Tokens unless registered or exempt from registration, and the Investor has provided evidence reasonably satisfactory to the Company, including legal opinions if requested.

Legends

The Company may place restrictive legends, smart-contract notices, account restrictions, metadata, internal ledger restrictions, or other transfer warnings on this Agreement or Tokens.

10. RISK FACTORS

Startup and Development Risk

The Company is an early-stage technology company and may fail. The Platform is under development and may never be completed. Features may be delayed, changed, reduced, discontinued, or replaced.

Token Non-Issuance and Utility Risk

Tokens may never be created, issued, delivered, or made usable. Even if issued, Tokens may not provide expected utility or may provide limited utility.

Regulatory and Securities Law Risk

Regulation of tokens, digital assets, securities, AI systems, data processing, and financial technology is uncertain and evolving. This Agreement may be deemed a security, and Tokens may also be deemed securities depending on facts and circumstances.

Florida Law Risk

Because the Company is based in Florida and may offer this Agreement to Florida residents, Florida securities laws, anti-fraud provisions, investor protection laws, money transmission laws, and consumer protection laws may apply.

Money Transmission and AML Risk

Token-related activities may implicate money transmission, virtual currency, AML, sanctions, or financial crime rules. Compliance obligations may delay or prevent Token delivery or use.

Tax Risk

Tax treatment of this Agreement and Tokens is uncertain. The Investor may incur tax liability even if Tokens are illiquid or have limited utility.

Technology and AI Risk

The Platform, smart contracts, wallets, APIs, servers, AI models, databases, and digital infrastructure may suffer bugs, hacks, exploits, data loss, outages, cyberattacks, security failures, inaccurate AI outputs, or provider limitations.

Third-Party Provider Risk

The Company may depend on cloud providers, GPU providers, LLM providers, blockchain networks, wallet providers, payment processors, banks, compliance vendors, and other third parties.

Market and Liquidity Risk

There may be no market for Tokens. The Company does not promise secondary trading, liquidity, exchange listing, market-making, or token price support.

Complete Loss Risk

The Investor may lose the entire Purchase Amount. Neither this Agreement nor the Tokens are insured by the FDIC, SIPC, or any government agency.

11. COMPANY COVENANTS

Reasonable Development Efforts

The Company shall use commercially reasonable efforts, subject to available capital, business conditions, technical feasibility, legal compliance, and management judgment, to develop the Platform and evaluate the creation of Tokens.

No Duty to Maximize Token Value

The Company has no duty to maximize Token value, support Token trading, increase Token price, create investment returns, or manage the Platform for the financial benefit of Token holders.

Compliance

The Company shall use commercially reasonable efforts to conduct the offering and Token delivery in compliance with Applicable Law.

Modification for Legal Compliance

The Company may modify the Token structure, Token utility, delivery schedule, transfer restrictions, investor eligibility requirements, or other terms to comply with Applicable Law or counsel's advice.

12. INTELLECTUAL PROPERTY

Company Ownership

All intellectual property, technology, software, code, models, datasets, trade secrets, inventions, trademarks, copyrights, patents, designs, workflows, methods, prompts, agents, interfaces, know-how, systems, business processes, and other rights developed, owned, licensed, or used by the Company are and shall remain the sole property of the Company or its licensors.

No IP Transfer

The Investor receives no intellectual property rights by purchasing this Agreement or receiving Tokens.

Token Use Does Not Grant Ownership

Use of Tokens to access Platform functionality does not transfer ownership of any Company intellectual property, infrastructure, software, AI model, agent, workflow, data system, or business asset.

13. CONFIDENTIALITY

Confidential Information

The Investor shall keep confidential all non-public information received from the Company, including business plans, technology plans, token economics, offering terms, financial information, product roadmaps, investor materials, and technical information.

Exceptions

Confidentiality obligations do not apply to information that is publicly available through no breach by the Investor, already known without duty of confidentiality, independently developed, or required to be disclosed by law.

Required Disclosure

If legally required to disclose Confidential Information, the Investor shall provide prompt written notice to the Company unless prohibited by law.

14. TAXES

Investor Tax Responsibility

The Investor is solely responsible for all taxes arising from the purchase of this Agreement, receipt or use of Tokens, transfer or sale of Tokens, or any related transaction.

No Tax Advice

The Company has not provided tax advice to the Investor.

Tax Forms and Withholding

The Investor shall provide any tax forms requested by the Company, including IRS Form W-9, W-8BEN, W-8BEN-E, or other applicable documentation. The Company may withhold or deduct any amounts required by Applicable Law.

15. INDEMNIFICATION

Investor Indemnity

The Investor shall indemnify, defend, and hold harmless the Company, its Affiliates, officers, directors, employees, contractors, advisors, agents, successors, and assigns from losses, claims, damages, liabilities, penalties, costs, and expenses arising from Investor breach, false information, non-compliance with law, violation of transfer restrictions, sanctions/AML/tax issues, or unauthorized transfer.

Company Indemnity

The Company shall indemnify the Investor from losses directly arising from the Company's material breach of this Agreement, subject to the limitations in Section 16.

16. LIMITATION OF LIABILITY

No Consequential Damages

To the fullest extent permitted by law, neither Party shall be liable for indirect, incidental, consequential, special, punitive, exemplary, lost-profit, lost-revenue, lost-opportunity, or diminution-in-value damages arising out of this Agreement.

Liability Cap

To the fullest extent permitted by law, the Company's aggregate liability under this Agreement shall not exceed the Purchase Amount actually received by the Company from the Investor.

No Personal Liability

No officer, director, employee, shareholder, contractor, advisor, agent, or Affiliate of the Company shall have personal liability under this Agreement.

No Warranty

The Agreement, Tokens, Platform, and related services are provided “as is” and “as available,” without warranties of merchantability, fitness for a particular purpose, title, non-infringement, uninterrupted operation, security, profitability, marketability, or legal status, except as expressly stated herein.

17. TERMINATION

Termination by Company

The Company may terminate this Agreement upon written notice if the Investor breaches, fails compliance checks, provides false information, performance would violate law, a Disqualification Event occurs, the Company determines not to proceed with a Token Generation Event, or regulatory, technical, or business conditions make Token issuance impracticable.

Termination by Mutual Agreement

The Parties may terminate this Agreement by mutual written agreement.

Effect of Termination

Upon termination, the Company shall determine whether any refund is legally required or commercially appropriate. No refund shall be required if termination results from Investor breach, false representation, sanctions issue, AML failure, or unlawful conduct, except as required by Applicable Law.

Survival

Confidentiality, taxes, transfer restrictions, indemnification, limitation of liability, dispute resolution, governing law, risk acknowledgments, and miscellaneous provisions shall survive termination.

18. DISPUTE RESOLUTION; GOVERNING LAW

Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, without regard to conflict-of-law principles, except to the extent federal securities laws or other federal laws apply.

Venue

The Parties consent to exclusive jurisdiction and venue in the state and federal courts located in Miami-Dade County, Florida, unless the Company’s principal office is located in another Florida county at the time of dispute, in which case the Company may elect that county.

Waiver of Jury Trial

TO THE FULLEST EXTENT PERMITTED BY LAW, EACH PARTY WAIVES ANY RIGHT TO TRIAL BY JURY IN ANY ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT.

Attorneys’ Fees

The prevailing Party in any dispute arising out of this Agreement shall be entitled to recover reasonable attorneys’ fees and costs, subject to Applicable Law.

19. NOTICES

Notices

All notices under this Agreement shall be in writing and delivered by email, courier, certified mail, or other method designated by the Company. Notices by email shall be deemed delivered when sent, unless the sender receives an automated failure notice.

Company Notices

AI Creates AI Inc., [Company Address], Email: [Company Email], Attention: [Authorized Officer].

Investor Notices

[Investor Name], [Investor Address], Email: [Investor Email].

20. MISCELLANEOUS

Entire Agreement

This Agreement, together with all exhibits, schedules, risk disclosures, subscription documents, and investor questionnaires, constitutes the entire agreement between the Parties regarding the subject matter hereof.

Amendments

This Agreement may be amended only by a written instrument signed by the Company and the Investor, except that the Company may make ministerial, technical, or compliance-related modifications to Token mechanics, delivery procedures, and transfer restrictions without Investor consent if reasonably necessary to comply with Applicable Law or technical requirements.

Assignment

The Investor may not assign this Agreement without the Company's prior written consent. The Company may assign this Agreement to an Affiliate, successor, acquirer, merger entity, reorganized entity, or purchaser of substantially all Company assets.

Severability

If any provision is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

No Waiver

No failure or delay in exercising any right shall constitute a waiver.

Counterparts; Electronic Signature

This Agreement may be executed in counterparts and by electronic signature. Electronic signatures shall have the same force and effect as original signatures.

Further Assurances

The Investor shall execute and deliver additional documents reasonably requested by the Company to carry out this Agreement or comply with Applicable Law.

EXECUTION PAGE

IN WITNESS WHEREOF, the Parties have executed this Simple Agreement for Future Tokens as of the date first written above.

COMPANY

AI Creates AI Inc.

A Florida C-Corporation

INVESTOR

Investor Name: _____

Entity Name, if applicable: _____

By: _____

Name: Sholom [Last Name: _____]

Title: [Founder / President / CEO / Authorized Officer]

Date: _____

By: _____

Name: _____

Title, if entity: _____

Date: _____

Company EIN: [_____]

Purchase Amount: \$ _____

Signature page to Simple Agreement for Future Tokens - AI Creates AI Inc.

EXHIBIT A

TOKEN UTILITY SCHEDULE

- AI compute credits
- AI agent deployment and usage
- LLM/API access
- Adam platform access
- Eve customer-facing assistant access
- Jarvis business-building assistant access
- Automation workflow credits
- Dashboard and admin portal access
- Storage, inference, rendering, and processing credits
- Software module unlocks
- Premium templates, workflows, and business-building tools
- Marketplace fees
- Subscription credits
- Enterprise service credits
- Other products or services approved by the Company

The Company may modify, expand, restrict, or discontinue any Token utility in accordance with Applicable Law and business judgment.

Investor Signature: _____ Date: _____

EXHIBIT B

INVESTOR QUESTIONNAIRE

- Full legal name; date of birth or formation date; address; email; phone; tax ID/SSN/EIN; jurisdiction of residence or formation
- Accredited investor status: net worth, income, professional credential, entity assets, all-equity-owner status, or other applicable category
- Investment experience with private placements, digital assets, tokens, and startup investments
- Relationship to the Company, founder, officer, director, or authorized representative, including date the relationship began
- Confirmation that the investment was not offered through public advertising or social media unless expressly permitted by the offering exemption
- Source of funds and bank or wallet from which funds will be sent
- Sanctions, criminal, securities, and compliance disclosures
- Investor initials confirming high-risk startup investment, possible complete loss, no equity, no debt, no dividends, no management rights, possible non-issuance of Tokens, no guarantee of value, restricted transferability, own-account purchase, and opportunity to consult legal and tax advisors

Investor Signature: _____ Date: _____

EXHIBIT C

RISK DISCLOSURE ACKNOWLEDGMENT

- The Company is an early-stage startup
- The Company may fail
- The Platform may never launch
- Tokens may never be created or issued
- Tokens may provide limited or no utility
- Tokens may have no market value
- Tokens may not be transferable
- There may be no exchange listing
- The Company does not promise profit, appreciation, return, yield, dividends, revenue share, or passive income
- The Investor has no management rights
- The Investor has no ownership rights
- The Investor has no claim to Company assets
- The investment is illiquid
- Regulation may delay, restrict, or prevent Token delivery
- The Investor may lose the entire Purchase Amount

Investor Signature: _____ Date: _____

EXHIBIT D

FLORIDA NOTICE AND PRIVATE OFFERING ACKNOWLEDGMENT

- The offering is intended to comply with an available exemption under Chapter 517, Florida Statutes
- The offering remains subject to Florida anti-fraud provisions
- The Investor has received or had access to all information requested from the Company
- The Investor has had an opportunity to ask questions and receive answers from the Company
- The Investor is not relying on any oral promise, projection, guarantee, or statement not contained in this Agreement or official Company materials
- Any applicable Florida rescission rights, if any, are governed by Florida law and may not be waived

Investor Signature: _____ Date: _____

EXHIBIT E

SUBSCRIPTION SCHEDULE

- Investor Name: _____
- Purchase Amount: \$ _____
- Token Price / Formula: _____
- Estimated Token Allocation: _____
- Vesting Option: [A / B / C / Custom]
- Lockup Period: _____
- Payment Method: _____
- Wallet Address, if available: _____
- Jurisdiction: _____
- Accredited Investor Verification Received: [☐] Yes [☐] No
- KYC Approved: [☐] Yes [☐] No
- Company Approval: [☐] Yes [☐] No
- Company Authorized Signature: _____
- Investor Signature: _____
- Date: _____

Investor Signature: _____ Date: _____

EXHIBIT F

COMPANY COMPLETION CHECKLIST BEFORE ACCEPTING FUNDS

- Confirm offering exemption with securities counsel
- Confirm whether using Rule 506(b), Rule 506(c), Regulation S, Florida exemption, or a combination
- Confirm whether general solicitation is prohibited or permitted
- Confirm investor accreditation process
- Prepare Form D filing process, if applicable
- Prepare state notice filing process, if applicable
- Prepare investor questionnaire
- Prepare risk disclosure package
- Prepare official use-of-proceeds disclosure
- Prepare token utility schedule
- Prepare KYC/AML process
- Prepare sanctions screening process
- Prepare investor relationship log
- Prepare cap table / SAFT holder ledger
- Confirm no bad actor disqualification
- Confirm Florida Chapter 517 considerations
- Confirm money-transmission analysis
- Confirm tax treatment with accountant
- Confirm corporate authorization by board/shareholders if required
- Have Florida securities counsel approve final documents

Investor Signature: _____ Date: _____

DRAFTING NOTES FOR COUNSEL

This working draft is intentionally structured to treat the SAFT as a private contractual securities instrument while preserving the argument that the future Tokens are intended to be consumptive utility tokens once the Platform is functional. Counsel should customize this draft based on the final offering structure, investor type, offering amount, investor jurisdiction, token economics, platform status, regulatory position, and corporate records.

- Rule 506(b) vs. Rule 506(c) choice
- Whether all purchasers must be accredited investors
- Florida Chapter 517 exemption path
- Florida rescission notice requirements, if applicable
- Form D and blue sky notice filings
- Token price and allocation formula
- Refund rights and deadline terms
- Money-transmission analysis
- FinCEN/MSB analysis
- Tax treatment
- Token utility language
- Transfer restrictions
- Risk factors
- Privacy and data handling
- Investor onboarding workflow